

SENATE No. 402

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act updating the charter net school spending cap.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>2/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>

SENATE No. 402

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 402) of Jason M. Lewis, Robyn K. Kennedy and James B. Eldridge for legislation to change the percentage of a school district's net school spending that can be allocated to charter school tuition,. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act updating the charter net school spending cap.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 89 of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 186, the figure “9” and inserting in
3 place thereof the following figure:- 7.

4 SECTION 2. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
5 hereby further amended by striking out, in lines 187 to 191, inclusive, the words “provided,
6 however, that a public school district's total charter tuition payment to commonwealth charter
7 schools shall not exceed 18 per cent of the district's net school spending if the school district
8 qualifies under paragraph (3)” and inserting in place thereof the following words:- provided,
9 however, that no students who attend a charter school on or before August 1, 2024 shall be
10 required to stop attending the charter school due to the public school district’s total charter
11 school tuition payment exceeding 7 percent of net school spending.

12 SECTION 3. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
13 hereby further amended by striking out, in line 194, the figure “9” and inserting in place thereof
14 the following figure:- 7.

15 SECTION 4. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
16 hereby further amended by striking out, in lines 195 to 196, inclusive, the words “or 18 per cent
17 for those districts that qualify under said paragraph (3)”

18 SECTION 5. Said section 89 of said chapter 71 of the General Laws, as so appearing, is
19 hereby further amended by striking out, in lines 214 to 290, subsections (i)(3) (i)(4) in their
20 entirety.